

**SUPRME COURT OF THE STATE OF NEW YORK
NEW YORK COUNTY**

PRESENT: **SALIANN SCARPULLA**

-----X

EUGENE JONES

Pre-Commencement: Y/N

INDEX NO. _____

-against-

City of New York

-----X

Upon review of the papers submitted in support of the emergency application to designate this matter as an "essential matter" pursuant to UCS Administrative Order AO-78-20 (Exh. A (E)), it is hereby

[X] ORDERED that the matter is "essential" under Section E of Administrative Order AO-278-20 and the movant is authorized to file the necessary papers in support of the relief sought; and it is further

ORDERED that County Clerk is directed to accept the papers presented for filing and issue an Index Number, if necessary, upon the payment of all fees, if any.

[] ORDERED that the matter is not "essential" under Section E of Administrative Order AO-278-20 and the movant's request to file is denied.

DATE:

Saliann Scarpulla
J.S.C.

SALIANN SCARPULLA

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X
EUGENE JONES,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER KIRK
BISHOP, Shield No. 5767, SERGEANT DAVID
FARGNOLI, LIEUTENANT KENNETH HERRARTE,
and POLICE OFFICERS JOHN DOES #1-4 (names and
numbers of whom are unknown at present),

Defendants.
----- X

SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates New York
County as the place of trial.

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
April 16, 2020

Yours, etc.

/s/
JACOBS & HAZAN, LLP.
DAVID M. HAZAN, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
POLICE OFFICER KIRK BISHOP, Shield No. 5767, PSA 4, 130 Loisaida Ave, New
York, NY 10009
SERGEANT DAVID FARGNOLI, PSA 4, 130 Loisaida Ave, New York, NY 10009
LIEUTENANT KENNETH HERRARTE, PSA 4, 130 Loisaida Ave, New York, NY 10009

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X

EUGENE JONES,

Plaintiff,

INDEX NO.:

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, POLICE OFFICER KIRK
BISHOP, Shield No. 5767, SERGEANT DAVID
FARGNOLI, LIEUTENANT KENNETH HERRARTE,
and POLICE OFFICERS JOHN DOES #1-4 (names and
numbers of whom are unknown at present),

JURY TRIAL DEMANDED

Defendants.

----- X

Plaintiff EUGENE JONES, by his attorneys, Jacobs & Hazan, LLP, as and for his
Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. Plaintiff alleges that on April 16, 2017 at approximately 6:00 pm plaintiff was lawfully present in or in the vicinity of 950 East 4 Walk, New York, New York, an apartment building that is owned and operated by the New York City Housing Authority, when the individually named defendants unlawfully stopped, questioned, frisked, searched, falsely arrested/imprisoned plaintiff, without probable cause or legal justification. Defendants transported plaintiff against his will to the PSA 4 Precinct whereat plaintiff was unlawfully fingerprinted, photographed and detained in a filthy holding cell for many hours. Many hours after defendants unlawfully detained plaintiff they issued plaintiff a Desk Appearance Ticket falsely accusing plaintiff of trespassing into 950 East 4 Walk, New York, New York despite the facts that the defendants were informed that plaintiff was lawfully visiting his brother who was a tenant in the building and that plaintiff had a key to the building in his possession at the time of his arrest. Plaintiff was released from custody when defendants issued the Desk Appearance Ticket to him which required plaintiff to appear in New York County Criminal Court on June 14, 2017. Defendants provided the New York County District Attorney's Office with false, misleading and incomplete evidence regarding defendants purported basis for arresting plaintiff and charging him with crimes. Defendants maliciously prosecuted plaintiff and denied plaintiff the right to due process/ right to fair trial when they maliciously initiated a criminal prosecution against him, without

probable cause. Plaintiff was required to appear in New York County Criminal Court on four occasions until all criminal charges terminated in plaintiff's favor and were dismissed and sealed in their entirety on February 2, 2018. Plaintiff was deprived of his constitutional and common law rights when the individually named defendants unlawfully stopped, questioned, frisked, searched, confined, falsely arrested, maliciously prosecuted, and denied plaintiff the right to a fair trial/ due process in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff EUGENE JONES is a resident of the state of New York.
3. POLICE OFFICER KIRK BISHOP, Shield No. 5767, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
4. POLICE OFFICER KIRK BISHOP, Shield No. 5767, was at all times relevant herein, assigned to the PSA 4 Command.
5. POLICE OFFICER KIRK BISHOP, Shield No. 5767, is being sued in his individual and official capacity.
6. SERGEANT DAVID FARGNOLI, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
7. SERGEANT DAVID FARGNOLI, is and was at all times relevant herein, assigned to the PSA4 Command.
8. SERGEANT DAVID FARGNOLI, is being sued in his individual and official capacity.
9. LIEUTENANT KENNETH HERRARTE, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
10. LIEUTENANT KENNETH HERRARTE, is and was at all times relevant herein, assigned to the PSA 4 Command.
11. LIEUTENANT KENNETH HERRARTE, is being sued in his individual and official capacity.
12. New York City Police Officers John Does #1-4 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.
13. Police Officers John Does #1-4 are being sued in their individual and official capacities.
14. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees

and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

15. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

16. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

17. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

18. By way of background, plaintiff's brother is a tenant at 950 East 4 Walk, New York, New York, which is an apartment building that is owned and operated by the New York City Housing Authority.

19. Plaintiff visits his brother at 950 East 4 Walk often and possesses a key to the building which was given to him by his brother.

20. On April 16, 2017 at approximately 6:00 pm plaintiff was lawfully present visiting his brother in or in the vicinity of 950 East 4 Walk, New York, New York, when the individually named defendants unlawfully stopped, questioned, frisked, searched, falsely arrested/imprisoned plaintiff, without probable cause or legal justification.

21. At no time relevant herein did plaintiff commit a crime, violate the law in any way, or behave in a suspicious manner that would give a reasonable police officer reasonable suspicion or probable cause to believe plaintiff committed a crime.

22. Defendants did not possess any objective facts that suggested to them that plaintiff committed a crime or violated the law in any manner.

23. At all times relevant herein defendants lacked probable cause to arrest plaintiff.

24. At no time relevant herein did the defendants recover any illegal drugs, weapons, or contraband from plaintiff's person or from his possession, custody or control.

25. Plaintiff told the defendants that he was visiting his brother who was a tenant in 950 East 4 Walk, New York, New York.

26. Additionally, plaintiff showed the defendants that he was even in possession of a key to the building to 950 East 4 Walk that he his brother gave him to gain entry into the building.

27. Nevertheless, the defendants unlawfully handcuffed plaintiff without probable cause and accused plaintiff of trespassing into the building even though defendants did not possess any objective evidence that indicated plaintiff was trespassing in the building.

28. Defendants transported plaintiff against his will to the PSA 4 Precinct whereat plaintiff was unlawfully searched, fingerprinted, photographed and detained in a filthy holding cell for many hours.

29. Defendants provided the New York County District Attorney's Office with false, misleading and incomplete evidence regarding defendants purported basis for arresting plaintiff and charging him with crimes.

30. Defendants falsely advised the New York County District Attorney's Office that plaintiff was trespassing in 950 East 4 Walk on April 16, 2017 and that plaintiff was found to be in possession of an illegal substance by defendants.

31. Defendants issued plaintiff a Desk Appearance Ticket falsely accusing plaintiff of trespassing into 950 East 4 Walk, New York, New York.

32. Many hours after defendants unlawfully detained plaintiff they issued plaintiff the Desk Appearance Ticket and released plaintiff from custody.

33. The Desk Appearance Ticket required plaintiff to appear in New York County Criminal Court on June 14, 2017.

34. A criminal prosecution was maliciously initiated against plaintiff without probable cause based upon the false allegations made against plaintiff by defendants.

35. Defendants maliciously prosecuted plaintiff and denied plaintiff the right to due process/ right to fair trial when they maliciously initiated a criminal prosecution against him, without probable cause.

36. Plaintiff was arraigned in New York County Criminal Court on June 14, 2017 and charged with crimes he did not commit and that defendants lacked probable cause to accuse him of committing.

37. Plaintiff was released on his own recognizance at arraignment.

38. Plaintiff was required to appear in New York County Criminal Court on four occasions until all criminal charges terminated in plaintiff's favor and were dismissed and sealed in their entirety on February 2, 2018.

39. The defendants denied plaintiff the right to due process/ right to a fair trial and maliciously initiated a criminal prosecution against plaintiff without probable cause

40. At no time relevant herein did plaintiff violate the law or commit a crime, nor did the defendants possess and objective factual basis to believe plaintiff committed a crime or violated the law in any manner.

41. Those officers that did not physically touch plaintiff but observed their fellow officers violating plaintiff's rights under New York State law and the Constitution, but neglected to intervene to stop their fellow officers from continuing to violate plaintiff's rights under New York State law and the United States Constitution are liable to plaintiff for their failure to intervene.

42. There is a policy, practice or custom within the New York City Police Department, wherein New York City Police Officers illegally conduct, enforce and sanction an unlawful vertical patrol and trespass arrest policy in NYCHA owned buildings which has resulted in a pattern and practice of illegal stops, seizures, questioning, searches, and false arrests of residents of, and authorized visitors to, NYCHA residences.

43. Under the NYPD's unlawful trespass arrest practices, New York City Police Department officers conduct roving pedestrian checkpoints in and around NYCHA residences, wherein they indiscriminately stop and question every person they observe, without objective individualized suspicion of a crime and unlawfully arrest individuals for trespass without probable cause.

44. The NYPD's unlawful trespass arrest practices implemented by NYPD officers and supervisors fails to require that an arresting officer act upon observed behavior that reliably differentiates a suspected trespasser or "unauthorized person" in a NYCHA hallway from a lawful visitor in transit, or a building resident enjoying the common area of his own home.

45. Defendants' failure to provide adequate guidance, training, supervision and support to NYPD officers regarding whom to stop, question, seize, search and arrest for trespass, results in a de facto roving checkpoint and a pattern and practice of unlawful stops, seizures, and arrests.

46. The only guiding principles provided to NYPD officers are consistent with, and reflective of, a policy, practice, and custom of reckless arrests based on less than probable cause.

47. As a result of defendant City of New York and the New York City Police Department's policy, practice, and custom of unlawful trespass arrest practices in NYCHA buildings, plaintiff Eugene Jones was subjected to an unconstitutional stop, question, frisk, arrest, detention, and criminal prosecution on the date of the incident.

48. The unlawful stop, question, frisk, search, false arrest, false imprisonment, malicious prosecution, and the denial of the right to due process/ right to a fair trial against plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological, economic, and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment, Fifth Amendment, and Fourteenth Amendment Rights

49. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 48 with the same force and effect as if more fully set forth at length herein.

50. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully stopped, questioned, frisked, seized, unlawfully searched, falsely arrested, falsely imprisoned, maliciously prosecuted, and denied the right to a fair trial without probable cause in violation of plaintiff's right to be free of an unreasonable seizure and denial of due process under the Fourth Amendment to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

51. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

52. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 51 with the same force and effect as if more fully set forth at length herein.

53. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

54. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

55. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

56. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Stop, Question and Frisk

57. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 56 with the same force and effect as if more fully set forth at length herein.

58. The illegal approach, pursuit, stop, questioning and frisk employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

59. The conduct of defendants in stopping, frisking and searching, plaintiff were performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

60. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York.

61. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

62. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Unlawful Search

63. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 62 with the same force and effect as if more fully set forth at length herein.

64. The illegal approach, pursuit, stop and search inside plaintiff's pockets, inside of the waistband of his pants and underneath his clothing employed by defendants herein, terminated plaintiff's freedom of movement through means intentionally applied.

65. Defendants lacked probable cause to search plaintiff.

66. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

67. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

68. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Malicious Prosecution

69. Plaintiff repeats and realleges paragraphs 1 through 68 as if fully set forth herein.

70. The acts and conduct of the defendants constitute malicious prosecution under the laws of the United States Constitution, State of New York and New York State common law.

71. Defendants commenced and continued a criminal proceeding against plaintiff.

72. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.

73. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned dates.

74. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

75. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SIXTH CAUSE OF ACTION**Violation of Plaintiff's 5th Amendment Right Denial of Due****Process and Denial of Right to Fair Trial**

76. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 through 75 with the same force and effect as if fully set forth herein.

77. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the New York County District Attorney's Office.

78. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the New York County District Attorney's Office.

79. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the New York County District Attorney's Office.

80. In withholding/creating false evidence against plaintiff Marvin David, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

81. As a result of the foregoing, plaintiff sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

82. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SEVENTH CAUSE OF ACTION**Municipal Liability under 42 U.S.C. § 1983**

83. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 82 with the same force and effect as if more fully set forth at length herein.

84. The vertical patrol policy and trespass arrest practices involve systemic stopping, seizing, questioning, and searching of any and all persons observed in common areas of NYCHA residences absent individualized suspicion.

85. By adopting and implementing the vertical patrol policy and trespass arrest practices in this manner, the City of New York and the New York City Police Department has enforced, promoted, encouraged and sanctioned a policy, practice, and/or custom of roving pedestrian checkpoints for general crime control wherein they indiscriminately stop and seize individuals in the absence of objective, individualized criteria in violation of the Fourth Amendment to the United States Constitution.

86. By adopting and implementing the vertical patrol policy and trespass arrest practices in this manner, the City of New York and the New York City Police Department has enforced, promoted, encouraged and sanctioned a policy, practice and/or custom of arresting individuals for trespass without probable cause to establish that a criminal offense has been or is being committed, as required by the Fourth Amendment to the United States Constitution.

87. These Constitutional abuses and violations were, and are, directly and proximately caused by policies, practices and/or customs devised, implemented, enforced, promoted, encouraged and sanctioned by the City of New York and the New York City Police Department, including but not limited to: (a) the failure to adequately and properly screen, train, and supervise NYPD officers; (b) the failure to properly and adequately monitor and discipline NYPD officers; and (c) the overt and tacit encouragement and sanctioning of, and the failure to rectify, the NYPD's suspicionless stops, seizures, questions, searches and arrests for trespass.

88. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the violation of plaintiff's constitutional rights as described herein. As a result of the failure of defendant City of New York and the New York City Police Department to properly recruit, screen, train, discipline, and supervise its officers, including the individual defendants, defendant City of New York has tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complained of herein.

89. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff as alleged herein.

90. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by plaintiff as alleged herein.

91. As a result of the foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department, plaintiff was unlawfully stopped, questioned, frisked, searched, arrested, and detained.

92. Defendants collectively and individually, while acting under color of state law were directly and actively involved in violating plaintiff's constitutional rights.

EIGHTH CAUSE OF ACTION**Failure to Intervene**

93. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 92 with the same force and effect as if more fully set forth at length herein.

94. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

95. Defendants failed to intervene to prevent the unlawful conduct described herein.

96. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

97. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

JURY DEMAND

98. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Eugene Jones demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
April 16, 2020

By: /s/

DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

ATTORNEY'S VERIFICATION

DAVID M. HAZAN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
April 16, 2020

_____/s/
DAVID M. HAZAN